

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: March 12, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	24CV450079	HERITAGE BANK OF COMMERCE vs H2-MDZ LLC	Motion for Entry of Default Judgement The Court notes that under common practice, submitted default judgment packets are reviewed and decided on the papers without a calendared motion. Nevertheless, Plaintiff's "Application for Default Court Judgment" is GRANTED. The Court will sign the previously submitted JD-100.
LINE 8	24CV453875	PNC Bank, National Association, vs WADE'S INC. et al	Hearing: Writ of Possession to Wade's Inc. Off calendar.
LINE 9	24CV453875	PNC Bank, National Association, vs WADE'S INC. et al	Hearing: Writ of Possession to Byron C. Wade, and individual Off calendar.

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Calendar Line 1

Case Name: *Hamid Khazaeli v. Julie Cliff et al.*

Case No.: 24CV448245

I. BACKGROUND

Plaintiff Hamid Khazaeli brings this legal malpractice action against defendants Julie Cliff, Esq. (“Cliff”) and The Law Office of Julie B. Cliff (collectively, “Defendants”).

According to the allegations of the first amended complaint (“FAC”), in or around October 2016, Plaintiff obtained a money judgment in the amount of \$5,147,898 for employment discrimination. (FAC, ¶ 5.) On January 17, 2019, Plaintiff filed a third amended complaint alleging six causes of action. (*Ibid.*) In or around March 2020, Plaintiff received an adverse judgment. (*Ibid.*) On August 20, 2020, Plaintiff filed a notice of appeal in the trial court. (*Ibid.*)

In August 2022, Defendants, on behalf of Plaintiff, filed a motion to augment and Appellant Opening Brief in the Sixth District Court of Appeal. (FAC, ¶ 6.) In the process of representing Plaintiff, Defendants committed “a multitude of wrongdoings and legal errors, irreparably damaging and prejudicing Plaintiff’s case.” (FAC, ¶ 7.) Because of these wrongdoings, Plaintiff was unable to collect on his valid money judgment in the amount of \$5,147,898, and instead collected nothing. (FAC, ¶ 8.)

On October 23, 2024, Plaintiff filed the operative FAC, asserting the following causes of action against Defendants:

- 1) Professional Negligence;
- 2) Breach of Fiduciary Duty;
- 3) Breach of Contract; and
- 4) Conversion.

On December 9, 2024, Defendants filed a general denial and asserted nine affirmative defenses. On December 19, 2024, Plaintiff filed a demurrer to Defendants’ answer. Defendants oppose. Plaintiff filed a reply. Both parties appear in pro per.¹

¹ “[W]hen a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys. Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 [internal citations omitted]; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985 “[a] doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation”]; see also *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 416.)